Banking

Ingyu Bahng

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Contents

1 Global Payment Systems & Messaging Infrastructure

1.1 Society for Worldwide Interbank Financial Telecommunications

Core Concept 1.1: Society for Worldwide Interbank Financial Telecommunications

The **Society for Worldwide Interbank Financial Telecommunication (SWIFT)** serves as the foundational communication layer for global banking. It is a critical distinction that SWIFT operates strictly as a **secure messaging network**; it transmits standardized instructions (*payment orders*) between counterparties, while actual cash settlement is processed down the line through correspondent banking networks.

Core Concept 1.2: Business Identifier Codes

The **Business Identifier Code (BIC)**—also referred to as a **SWIFT code**—is an 8- to 11-character alphanumeric string that uniquely identifies a financial or non-financial institution globally. The code is structured into four distinct components to parse geographic and operational details during cross-border routing.

$$\underbrace{\texttt{BBBB}}_{\text{Bank Code}}\quad\underbrace{\texttt{CC}}_{\text{Country Code}}\quad\underbrace{\texttt{LL}}_{\text{Location Code}}\quad\underbrace{\texttt{BBB}}_{\text{Branch Code}}$$

Component	Functional Significance	Examples
Bank Code	Unique identifier for the **primary financial institution** or corporate entity. Must consist entirely of alphabetical letters.	CHAS, CITI, KOEX, DEUT, BOFA, WFBI
Country Code	Denotes the **home nation** of the institution's primary operating license using **standard ISO 3166-1 alpha-2 codes**.	KR, US, CH, CN, FR, GB, JP
Location Code	Identifies the **specific city, state, or operational hub**. Can be **letters or digits**; if the second character is a '2', it typically designates a test or sandbox environment.	FF, NY, SE, 2L
Branch Code	**Optional modifier** identifying a precise physical branch or office. If absent, the standard 8-character code assumes a default primary office, often padded with 'XXX'.	500, XXX

Table 1: Business identifier code components

Core Concept 1.3: Message Types

Traditional SWIFT messages are structured as highly formatted text-based **Message Type (MT)** strings, parsed using a three-digit numerical sequence. The first digit—the hundreds place—categorizes the primary transaction sector or asset class involved in the message exchange (*Table 2*). Sub-categories (*the tens and units places*) further drill down into the specific function of the message, such as initiation, confirmation, or structural notifications.

However, the contemporary financial infrastructure is transitioning to the XML-based **ISO 20022 (MX) format**

(*Core Concept 1.4*), allowing for richer data blocks, granular tracking, and more robust compliance screening.

Category	Functional Area
MT 1XX	Customer Payments & Cheques
MT 2XX	Financial Institution Transfers
MT 3XX	Treasury Markets (FX & Derivatives)
MT 4XX	Collection & Cash Letters
MT 5XX	Securities Markets
MT 6XX	Precious Metals & Commodities
MT 7XX	Documentary Credits & Guarantees
MT 8XX	Travellers Cheques
MT 9XX	Cash Management & Status

Table 2: Message type broad categories

Among these message types, a small subset is of particular relevance to retail customer actions.

(a) **MT103: Single Customer Credit Transfer**

Used to instruct the transfer of funds from a customer's account at one bank to a beneficiary's account at another, typically for cross-border retail and commercial payments; it remains the most widely used SWIFT message type for individual credit transfers.

(b) **MT110: Advice of Cheque**

Sent by the drawer bank to the drawee bank to notify it that a cheque has been issued, providing details such as the cheque number, amount, and payee, allowing the receiving bank to verify the instrument upon presentation.

(c) **MT101: Request for Transfer**

Allows a corporate or retail customer to instruct their bank to execute one or more payment transfers on their behalf, often used for centralized treasury operations or bulk payment requests.

1.2 ISO 20022

Core Concept 1.4: ISO 20022

ISO 20022 represents the modern global standard for financial messaging, transitioning from legacy, character-restricted SWIFT MT text lines to rich, structural XML-based MX schemas. By introducing highly structured, granular, and uniform data elements, ISO 20022 dramatically reduces false positives in automated compliance screening, allows for the transmission of extensive remittance information within a single payment, and enables cross-border interoperability among various real-time gross settlement (RTGS) systems worldwide.

1.3 Clearing Houses

Core Concept 1.5: CHIPS

The Clearing House Interbank Payments System (CHIPS) serves as the primary, privately owned clearing and settlement engine for large-value domestic and international USD transactions, facilitating approximately 95% of global correspondent banking dollar liquidity. Unlike real-time gross settlement systems like Fedwire, CHIPS utilizes a sophisticated, multilateral continuous netting algorithm that matches and clears offsetting payments throughout the day, allowing participant banks to settle trillions of dollars in aggregate transactions using only a small fraction of actual funding reserves.

2 Correspondent Banking Mechanics

2.1 Account Relationships

Core Concept 2.1: Nostro & Vostro Accounts

Nostro and Vostro accounts form the essential bilateral ledger framework required to execute international correspondent banking transactions. From the perspective of a domestic institution, a **Nostro account** ("our money held by you") is a foreign-currency cash balance maintained on deposit at a correspondent bank abroad, whereas a **Vostro account** ("your money held by us") is a domestic-currency ledger balance maintained on behalf of a foreign counterparty bank to clear local financial transactions.

2.2 Transaction Routing

Core Concept 2.2: Intermediary Bank Participation

Intermediary bank participation occurs when the originating bank and the ultimate receiving bank share no direct correspondent relationship or matching Nostro/Vostro agreements. In these scenarios, the payment must be sequentially routed through one or more transit or correspondent banks that act as credit bridges, with each intermediary bank executing internal ledger transfers, subtracting specialized transaction fees, and forwarding the messaging string until it reaches the target jurisdiction.

Core Concept 2.3: Direct Transfer

A direct transfer takes place when the sending bank maintains an established, active Nostro account with the receiving bank, or vice versa. This direct account architecture completely eliminates the processing delays, variable transaction fees, and operational routing errors associated with multi-hop correspondent transit, allowing for the instantaneous debiting and crediting of reciprocal accounts across a clean ledger connection.

3 Regulatory Frameworks

Core Concept 3.1: Twin Peaks Framework

The Twin Peaks framework is a structural model of financial regulation that splits oversight responsibilities between two distinct, specialized authorities. One "peak" focuses exclusively on prudential regulation—ensuring the financial solvency, capitalization, and macro-stability of systemic institutions—while the second ”peak” targets market conduct, consumer protection, and business transparency, mitigating structural conflicts of interest inherent in consolidated single-regulator models.

3.1 United States

Core Concept 3.2: Federal Reserve Bank (FRB)

The Federal Reserve Board (FRB) operates as the apex monetary authority and systemic banking regulator in the United States. In addition to conducting macroprudential policy via interest rate setting and open-market operations, the Fed acts as the lender of last resort through the discount window, oversees systemically important financial institutions (SIFIs), and directly supervises state-chartered member commercial banks.

Core Concept 3.3: Office of Comptroller of the Currency (OCC)

The Office of the Comptroller of the Currency (OCC) is an independent bureau within the U.S. Department of the Treasury responsible for charting, regulating, and supervising all national banks and federal savings associations. The OCC manages microprudential risk profiles, enforcing compliance mandates and adjusting individual bank caps regarding **daily USD settlement capacity cuts and expansions** based on an institution’s balance-sheet health and intraday liquidity clearing risks.

Core Concept 3.4: Consumer Financial Protection Bureau (CFPB)

The Consumer Financial Protection Bureau (CFPB) is an independent regulatory body tasked with policing consumer-facing activities across the financial sector. The bureau monitors retail banking operations, mortgage lending practices, credit reporting agencies, and debt collectors to enforce anti-predatory mandates and ensure consumer financial markets remain fair, transparent, and non-discriminatory.

Core Concept 3.5: Financial Crimes Enforcement Network (FinCEN)

The Financial Crimes Enforcement Network (FinCEN) serves as the United States’ primary financial intelligence unit under the Department of the Treasury. FinCEN collects, analyzes, and disseminates transaction intelligence generated by financial institutions—including Suspicious Activity Reports (SARs) and Currency Transaction Reports (CTRs)—to combat systemic money laundering, terrorist financing, and illicit international tax evasion networks.

Core Concept 3.6: Office of Foreign Assets Control (OFAC)

The Office of Foreign Assets Control (OFAC) is an administrative enforcement agency within the U.S. Department of the Treasury that administers and enforces economic and trade sanctions based on U.S. foreign policy and national security goals. OFAC publishes highly sensitive compliance lists, such as the Specially Designated Nationals (SDN) list, forcing global banking institutions utilizing the USD clearing network to block or freeze transactions involving targeted foreign regimes, terrorists, and international criminal syndicates.

3.2 Hong Kong

Core Concept 3.7: Hong Kong Monetary Authority (HKMA)

The Hong Kong Monetary Authority (HKMA) operates as the de facto central bank and primary financial regulator of Hong Kong. The HKMA is responsible for maintaining currency stability through the management of the Linked Exchange Rate System, supervising banking institutions to ensure structural solvency, and defending the operational integrity of Hong Kong's multi-currency financial infrastructure.

Core Concept 3.8: Hong Kong Police Force Commercial Crime Bureau (HKPF CCB)

The Commercial Crime Bureau (HKPF CCB) is a specialized investigative arm of the Hong Kong Police Force tasked with combating sophisticated white-collar financial crimes. The CCB targets large-scale corporate fraud, counterfeit currencies, systemic money laundering syndicates, and technology-driven financial scams, collaborating directly with local banking compliance officers and international law enforcement networks.

3.3 South Africa

Core Concept 3.9: South African Reserve Bank (SARB)

The South African Reserve Bank (SARB) functions as the central bank of the Republic of South Africa, acting as the prudential supervisor within the nation's formal Twin Peaks regulatory model. The SARB is legally mandated to achieve price stability via inflation targeting, manage national foreign exchange reserves, and oversee the clearing and settlement operations of the national payment system.

Core Concept 3.10: Financial Sector Conduct Authority (FSCA)

The Financial Sector Conduct Authority (FSCA) acts as the market conduct regulator in South Africa's Twin Peaks framework. Operating independently from the SARB, the FSCA oversees the business practices of financial institutions, investment funds, and market intermediaries, ensuring fair treatment of financial customers, promoting market efficiency, and reducing systemic financial crime.

3.4 United Kingdom

Core Concept 3.11: Financial Conduct Authority (FCA)

The Financial Conduct Authority (FCA) operates as the independent conduct regulator for financial services firms and financial markets across the United Kingdom. The FCA enforces rules regarding corporate governance, treating customers fairly, and market abuse, with structural authority to fine institutions, reverse toxic transactions, and remove professional financial licenses.

Core Concept 3.12: Prudential Regulation Authority (PRA)

The Prudential Regulation Authority (PRA), structured as a subsidiary arm of the Bank of England, serves as the prudential supervisor within the UK's financial system. The PRA establishes capital and liquidity adequacy frameworks for banks, building societies, credit unions, and systemic insurance firms, focusing entirely on preventing individual firm insolvencies from cascading into broader macroeconomic contagion.

3.5 Criminal Enforcement & Litigation

Core Concept 3.13: Racketeer Influenced and Corrupt Organizations Act (RICO)

The Racketeer Influenced and Corrupt Organizations Act (RICO) is a powerful federal statute designed to prosecute systemic criminal enterprises, heavily leveraged by U.S. authorities against institutional financial networks. In the context of banking, RICO allows prosecutors to hold senior executives and corporate entities civilly and criminally liable for patterns of racketeering activity, including bank fraud, mail and wire fraud, or structured international money laundering, bypassing individual transactional barriers.

Core Concept 3.14: Southern District of New York Department of Justice (SDNY DOJ)

The U.S. Attorney's Office for the Southern District of New York (SDNY), working alongside the Department of Justice, is the preeminent prosecutorial entity for global white-collar financial crime. Due to its jurisdiction over Wall Street and major international dollar clearing engines, the SDNY spearheads high-profile criminal prosecutions involving complex market manipulation, sovereign cross-border sanctions violations, corporate fraud, and multi-jurisdictional banking corruption.

Core Concept 3.15: Quinn Emanuel Urquhart & Sullivan

Quinn Emanuel Urquhart & Sullivan is an elite, global business litigation law firm famous for its specialization in high-stakes white-collar financial disputes, asset recovery, and complex banking defense. The firm frequently represents sovereign governments, major banking entities, and asset managers in multi-billion-dollar litigation involving structural financial products, derivatives failures, counterparty defaults, and extensive regulatory enforcement actions.

4 Private Wealth

4.1 Family Offices

Core Concept 4.1: Single-Family Offices (SFOs)

A Single-Family Office (SFO) is a private wealth management entity dedicated entirely to overseeing the investment portfolios, legal compliance, tax optimization, and generational estate planning of a single ultra-high-net-worth lineage. SFOs maintain strict internal operational privacy, customizing risk tolerance models and capital allocations to preserve and transition dynastic wealth across generations.

Core Concept 4.2: Multi-Family Offices (MFOs)

A Multi-Family Office (MFO) manages the aggregated wealth, estate planning, and philanthropic assets of multiple unrelated ultra-high-net-worth families. MFOs operate on a commercialized basis, pooling capital and operational resources across clients to achieve significant cost efficiencies, gain institutional access to exclusive private equity deals, and distribute expensive overhead costs.

5 Chronology of Major Systemic Banking Crises & Institutional Shocks

5.1 Systemic Willful Blindness & Balance Sheet Fractures

Core Concept 5.1: The Herstatt Risk Precedent (1974)

Core Concept 5.2: The BNP Paribas Fund Freezes (2007)

Core Concept 5.3: The HSBC Anti-Money Laundering Incident (2012)

Core Concept 5.4: The Digital Bank Run on Silicon Valley Bank (2023)

5.2 Deliberate Institutional Fraud & Criminal Enterprises

Core Concept 5.5: The Criminal Enterprise of BCCI (1991)

Core Concept 5.6: The Global LIBOR Manipulation Conspiracy (2012)